

AFP Legislation Compliance Analysis: Brooklyn Nine-Nine S1E13 "The Pontiac Bandit"

TLDR

The characters in this episode demonstrate several compliance issues with AFP legislation equivalents, most notably Jake Peralta's unilateral decision to override his partner's judgment and send an informant into a dangerous meeting alone without adequate oversight. Charles Boyle's return to duty while physically incapacitated raises questions about duty assignment and suspension provisions, and the general lack of command structure adherence throughout the episode conflicts with the hierarchical obligations outlined in the legislation.

Full Analysis

Important Disclaimer

Note that the Brooklyn Nine-Nine characters are members of the **NYPD**, not the Australian Federal Police. This analysis applies AFP legislation principles by analogy, treating the characters as if they were AFP appointees subject to the *Australian Federal Police Act 1979*.

Character-by-Character Analysis

Jake Peralta

Compliance Issues:

1. Failure to Follow Lawful Directions (Section 40)

The most significant compliance breach in the episode is Jake's decision to override Rosa Diaz's judgment and send Doug Judy into the meeting alone. Section 40 of the AFP Act requires that AFP appointees must not disobey or fail to carry out a lawful direction given by a person under whose control, direction or supervision they perform their duties.

Rosa, as the arresting officer on the Doug Judy case, had legitimate authority over the direction of that investigation. When she said "I'm calling it... we're going in now," Jake initially complied, but earlier he had already unilaterally decided to send Doug Judy in alone against Rosa's explicit objection. This represents a direct failure to follow a colleague's lawful direction within a shared operational context.

2. Reckless Use of an Informant / Failure to Adequately Protect a Civilian

Jake sent Doug Judy — a civilian informant — into a potentially dangerous meeting with minimal backup and no "rocket choppers" (his words). Under the AFP's professional standards framework (Part V, Division 1, Section 40RC), the Commissioner may determine professional standards to be complied with by AFP appointees. Standard operational procedure for handling informants would fall under such professional standards. Sending an uncuffed criminal informant into an unsupervised meeting with a suspected serious offender, based primarily on personal enthusiasm for catching a nemesis, falls well short of what professional standards would require.

3. Overconfidence Undermining Operational Integrity

Jake's claim that the Pontiac Bandit may have stolen cars "in the millions" demonstrates a pattern of hyperbole and poor analytical judgment. While not a direct legislative breach, Section 40RC professional standards would likely require accurate and evidence-based reporting. His math is also repeatedly flagged as poor throughout the episode, which could affect the quality of his written reports and evidence documentation.

4. Breach of the "Pact" as an Analogy for Professional Undertakings

While the "1,000 push-ups pact" is informal, Rosa explicitly frames it as a trust mechanism equivalent to a professional undertaking: "I care that you didn't honor our pact. I've always trusted you, and when you did that it made me feel like you don't trust me."* Under Section 36 of the AFP Act, AFP appointees must make undertakings relating to the performance of their duties. While the pact is not a formal undertaking, it reflects the spirit of professional commitment that Section 36 enshrines.

How Jake Could Have Acted Differently:

- Deferred to Rosa's judgment as the arresting officer on the Doug Judy matter, consistent with Section 40's requirement to follow lawful directions
- Escalated the disagreement to Captain Holt for resolution rather than unilaterally

overriding Rosa

- Ensured proper surveillance and backup protocols were in place before sending any informant into an unsupervised meeting
- Maintained accurate case documentation rather than speculating about millions of stolen cars

Score: 3/10

Jake's passion for catching the Pontiac Bandit is admirable, but his disregard for his partner's lawful operational judgment, his reckless handling of the informant, and his general disregard for proper procedure represent serious compliance failures under the AFP framework.

Rosa Diaz

Compliance Issues:

Rosa is actually the most compliant character in this episode. She follows proper arrest procedure with Doug Judy, appropriately escalates the deal to Captain Holt for approval, and correctly identifies the operational risks of sending Doug Judy in alone.

1. Minor: Failure to Fully Assert Authority

When Jake overrode her judgment about sending Doug Judy in alone, Rosa ultimately allowed it to proceed. Under Section 40, she had an obligation not only to follow lawful directions but also to ensure that operations under her purview were conducted properly. She could have escalated her objection more formally to Captain Holt rather than simply invoking the informal "1,000 push-ups" pact.

2. Conduct Becoming: Braiding Incident

Rosa allowing Doug Judy's mother to braid her hair while on duty, and then cutting it off with a knife, is a minor professionalism concern. AFP professional standards (Section 40RC) would likely address conduct and presentation while on active duty operations.

How Rosa Could Have Acted Differently:

- When Jake overrode her judgment, she should have escalated formally to Captain Holt rather than relying on an informal pact
- She could have more firmly documented her objections to the operational plan

Score: 7.5/10

Rosa demonstrates sound operational judgment throughout the episode. She correctly identifies the risks, follows proper arrest procedure, and appropriately seeks command approval for the deal. Her main failing is not escalating her override concern through formal channels.

Captain Raymond Holt

Compliance Issues:

1. Delegating a Personal Matter Through Official Channels (Minor)

Holt uses his position as commanding officer to find homes for his husband's dogs, approaching Santiago and Sergeant Jeffords in their official capacities. While minor, using command authority to advance personal matters could be seen as inconsistent with Section 69 of the AFP Act, which requires that the Commissioner (and by analogy, commanding officers) exercise powers without patronage or favouritism. Pressuring subordinates to take on personal obligations — even adorable ones — through the implicit weight of command authority is a soft compliance concern.

2. Positive: Appropriate Approval of the Doug Judy Deal

Holt correctly exercises his command authority under Section 37 (General Administration and Control) by reviewing and approving the deal with Doug Judy before it proceeds. This is exactly the kind of oversight that the AFP Act's command structure is designed to ensure.

3. Positive: Appropriate Handling of Boyle's Return

Holt's management of Charles Boyle's return to duty — ensuring the team supports him, acknowledging his heroism, and finding a constructive solution (the puppies) — reflects the kind of leadership that AFP professional standards would endorse.

4. Potential Issue: Boyle's Duty Assignment

Holt allows Charles to return to active duty while clearly physically incapacitated (butt cast, scooter, inability to perform basic tasks). Under Section 40H, the Commissioner (and by analogy, commanding officers) may determine the duties of employees and where those duties are to be performed. Allowing an officer who cannot hold a

coffee cup, navigate a hallway, or perform basic motor functions to return to active detective duties raises questions about whether Holt has appropriately assessed Boyle's fitness for the duties assigned.

How Holt Could Have Acted Differently:

- Should have formally assessed Boyle's fitness for duty before allowing his return, potentially assigning him to desk-only functions under Section 40H
- Should have addressed the personal/professional boundary issue regarding the dogs more carefully
- When Jake and Rosa disagreed about the Doug Judy operation, Holt could have been more proactive in resolving the dispute rather than leaving the decision to the detectives

Score: 7/10

Holt generally demonstrates strong command compliance, appropriately exercising oversight and showing genuine concern for his team's wellbeing. His main compliance gap is inadequate assessment of Boyle's fitness for duty.

Charles Boyle

Compliance Issues:

1. Fitness for Duty (Section 40H and Section 32)

Charles's return to duty while wearing a butt cast, riding a motorised scooter, unable to hold a coffee cup, requiring colleagues to retrieve items from his cast, and needing assistance in the bathroom represents a significant fitness-for-duty concern. Section 32 of the AFP Act deals with retirement on invalidity grounds, and Section 40H allows the Commissioner to determine the duties of AFP employees. While Charles has not reached the threshold for invalidity retirement, his condition clearly affects his ability to perform detective duties safely.

The scooter running over Captain Holt's foot is a concrete example of the occupational health and safety risks his condition poses to colleagues.

2. Positive: Heroism and Duty

It should be noted that Charles was injured in the line of duty defending a fellow officer, which Section 61 of the AFP Act (Awards for bravery) explicitly recognises. His

return to work, while premature from a fitness perspective, reflects genuine commitment to his duties.

3. Equipment and Workplace Safety

Charles dropping multiple mugs, spilling hot coffee into his cast, and running over his commanding officer's foot with a motorised scooter all raise workplace safety concerns that AFP professional standards would address.

How Boyle Could Have Acted Differently:

- Should have obtained formal medical clearance before returning to active duty
- Should have discussed with Captain Holt a modified duties arrangement under Section 40H rather than attempting to resume full detective responsibilities
- Should have disclosed the full extent of his mobility limitations before returning

Score: 5/10

Boyle's heart is clearly in the right place, and his heroism is commendable. However, his premature return to full duties without appropriate fitness assessment, and the safety risks he poses to colleagues and himself, represent genuine compliance concerns under the AFP framework.

Terry Jeffords

Compliance Issues:

1. Hiding from a Colleague

Terry's participation in hiding from Charles Boyle in the evidence room, while understandable from a human perspective, represents a failure of the professional support obligations that AFP professional standards would encompass. When a colleague has been injured in the line of duty, the professional obligation to support them is clear.

2. Positive: Appropriate Deference to Command

Terry consistently defers appropriately to Captain Holt's authority and demonstrates good command structure compliance throughout the episode.

How Terry Could Have Acted Differently:

- Should have addressed his concerns about Boyle's return through appropriate channels (e.g., speaking to Holt) rather than hiding
- Could have proactively raised the fitness-for-duty concern with Holt

Score: 6.5/10

Amy Santiago

Compliance Issues:

1. Concealing a Medical Condition

Amy conceals her dog allergy from Captain Holt in order to appear more favourable as a dog adopter: "I just need an EpiPen because my happiness is making my throat close up." While minor, misrepresenting one's health status to a superior officer conflicts with the honesty and integrity requirements underpinning AFP professional standards under Section 40RC. The situation ultimately results in her requiring an ambulance, creating an avoidable workplace health incident.

2. Hiding from Boyle

Like Terry, Amy's participation in hiding from Charles represents a failure of professional collegiality.

How Amy Could Have Acted Differently:

- Should have been honest with Captain Holt about her allergy rather than attempting to impress him
- Should have addressed her concerns about Boyle's return professionally rather than hiding

Score: 6/10

Gina Linetti

Compliance Issues:

1. Abandoning Post and Redirecting Official Communications

Gina leaves her desk, redirects the Captain's calls to the evidence room, and hides from a colleague. Section 40 of the AFP Act requires AFP appointees to carry out lawful directions. Abandoning one's post and redirecting official communications without authorisation is a clear breach of duty obligations.

2. Live-Tweeting Official Activities

Gina "live tweets everything" including, apparently, the movements of colleagues during work hours. Under Section 60A of the AFP Act (Secrecy), AFP appointees must not divulge prescribed information obtained in the course of their duties. While the content of Gina's tweets is not detailed, live-tweeting the internal movements and activities of colleagues during an active working day raises serious secrecy and professional standards concerns.

3. Pouring Milk Down a Colleague's Cast

While well-intentioned, Gina's decision to pour milk down Charles's cast without apparent medical training or authorisation raises minor duty-of-care questions.

How Gina Could Have Acted Differently:

- Should have remained at her post and addressed concerns about Boyle's return through appropriate channels
- Should not have redirected the Captain's calls without authorisation
- Should have ceased live-tweeting workplace activities, particularly given AFP secrecy obligations

Score: 2.5/10

Gina demonstrates the most consistent pattern of non-compliance in the episode, abandoning her post, redirecting official communications, and publicly broadcasting internal workplace activities.

Doug Judy (Civilian/Informant)

Note: Doug Judy is not an AFP appointee, so the legislation does not directly apply to him. However, his conduct as an informant operating under a formal deal with law enforcement is relevant.

Doug Judy deliberately deceives law enforcement officers, engineers his own escape,

and manipulates the entire operation from the outset. While entertaining, his conduct would constitute obstruction of justice and potentially additional criminal charges. His agreement with the detectives — to provide information in exchange for dropped charges — was entered into in bad faith from the beginning.

Score: 0/10 (from a compliance perspective, though 10/10 for entertainment value)

Summary Scores

Character	Score	Key Issue
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Rosa Diaz	7.5/10	Failure to formally escalate override concern
Captain Holt	7/10	Inadequate fitness-for-duty assessment of Boyle
Terry Jeffords	6.5/10	Hiding from colleague rather than formal escalation
Amy Santiago	6/10	Concealing medical condition, hiding from colleague
Charles Boyle	5/10	Premature return to duty without fitness assessment
Jake Peralta	3/10	Overriding partner's judgment, reckless informant handling
Gina Linetti	2.5/10	Abandoning post, redirecting official communications, live-tweeting
Doug Judy	0/10	Bad faith informant agreement, obstruction